DOCUMENT 8 — REVISION 4 → 5 CHANGE AND CUT LIST

Earlier logs: `archive-rev4/08-Cut-List.md` (Rev. 3 → 4), `archive-rev3/08` (Rev. 2 → 3), `archive-rev2/08` (Rev. 1 → 2).

Size	Rev. 1	Rev. 2	Rev. 3	Rev. 4	Rev. 5
Amended / enacted / repealed	4 / 19 / 1	8 / 3 / 0	9 / 4 / 0	13 / 5 / 0	**9 / 5 / 0**
Words (Document 5)	~10,100	~4,600	~4,550	~5,700	**~5,500**

Policy changes (by instruction)

Provision	Rev. 4	Rev. 5
3109.044(D)(5), (F)	Child 14+ "reasoned wishes" as a rebuttal ground	**Child 12+** reasoned preference, **followed** unless endangering, impracticable, or not the child's own view; written findings; no child must choose; the court decides
3109.044(E)(3)	Floor exceptions: agreement, request, distance, endangerment	Adds a followed child's preference
3109.045	Long list-based section	Rebuilt around one rule: the order stands until a court changes it or parents agree to a particular deviation
3109.053	No pay for court-required services; **GAL fees excluded**	Parents may agree to pay; a requesting parent may be charged; otherwise free to the non-agreeing parent; **GALs included**; nonpayment never delays or restricts
3109.047(A)	—	Optional, like support enforcement; direct contempt preserved
3109.047(D)(2), (F)	$100 / $250 / $500 payments; civil judgment; not support	**Deleted.** Make-up time plus a recorded violation; (I) creates no fine, fee, penalty, or damages
3119.024(B)	Greater of 30% or child care; court may vary	**No percentage.** Child care + child-specific deviations + agreed or designated amounts (capped at reasonable need); remainder

Provision	Rev. 4	Rev. 5
		parental

Legal fixes (from Revision 5 research)

Provision	Fix	Source
3119.024(E)	The credit is a 3119.22 deviation; the entered determination is the finding	45 CFR 302.56(g); R.C. 3119.22
3119.024(G)	Accounting and credit only while Ohio has continuing, exclusive jurisdiction	R.C. 3115.205, 3115.603(C), 3115.604
3119.024(A)	“Neither is spousal support”	42 U.S.C. 659(i)(3)
Section 3(E)	Restating existing orders goes through the court (or agency for administrative orders), not the agency alone; no change in circumstances	Judicial power over court orders

Section amendments removed (same effect, fewer sections)

Rev. 4 amendment	Now
3109.12	Named in 3109.044(A)
3109.055	Covered by 3109.053(D) “notwithstanding”
3109.04(C) cost clause	Covered by 3109.053(D)
2705.031(B)(2)	FSEA contempt authority in 3109.047(H)
3119.01	“Both are child support” moved into 3119.024(A)

Deletion pass (no policy change)

- The Read-first box: 5 numbered notes → 3 lines.
- 3109.043(B)–(C): 70 → 45 words.
- 3109.046(A)(2) and (D)(4): compressed.
- 3109.047(C), (F), (G): compressed.
- 3109.051(K)(4): “or any particular statement” dropped (covered by “not discouraging it”).
- 2919.23(E)(1), (F)(3): compressed; “requires only notice” dropped as redundant.
- Section 5: bulleted lists → sentences.
- 3109.04(E)(1)(c): “Equal status gives no right to time outside the existing schedule.”

Kept, by instruction

The PC-first step; the 14-day objection model; the referral thresholds; the 36-month mechanics; clear and convincing for false allegations; full-hearing vs. ex parte protection orders; the 90-night floor; where-not-what accounting; one-year delayed start; S.B. 174 conformity.

Revision 5 in bill form (5 October 2026)

Format change only; **no change in policy or substance.** The pre-bill-form excerpt version is in `archive-rev5/05-Proposed-Statutory-Language.md`.

Change	Detail
Structure	"A BILL" + long title; enacting clause; Section 1 (amend and enact); Section 2 (repeal of existing sections); uncodified Sections 3–7
Amended sections	Full current text reproduced (retrieved 5 Oct. 2026; `sources/billform_orc_*.txt`), additions underlined and deletions struck. This is why Document 5 grows from ~5,500 to ~19,100 words; the new language is unchanged
Order	Sections in numerical order: 2919.23, 3109.03, 3109.04, 3109.042–.047, 3109.051, 3109.053, 3109.401, 3119.024, 3125.10
Headings	Section catchlines and division run-in headings ("Presumption.", "Role.") removed
Lists	Bullets converted to divisions: 3109.047(H)(1)–(3); 3119.024(D)(1)–(5)
3109.043	Existing two paragraphs lettered (A) and (B); new provisions are (C) and (D) (were (B) and (C) in excerpt form)
3109.401	New finding placed as (A)(5), after (A)(4)(e), ending in a period
Uncodified	Former Section 3(E) delayed start is its own Section 4; totals → Section 5; forms, funding, data → Section 6; S.B. 174 → Section 7. Headings removed; "Read first" note removed
Ohio drafting wording	"As used in this section"; "means"; "resides" for "lives"; "may" for "can"; "shall" for directives; "not more than" for "up to"; "all of the following apply"; "in the proceeding on the motion"; "as otherwise provided in this chapter" for "as they are now." A word-by-word comparison confirmed these are the only wording differences